
CODE OF DELEGATED/SUBORDINATE LEGISLATION OF BANGLADESH
VOLUME II: PERIOD 1858-1947

BRITISH CROWN RULE — BENGAL PROVINCE / EAST BENGAL

Package SD-1

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PREFACE

Volume II of the Code covers the most prolific period for subordinate legislation in Bangladesh's legal history: 1858-1947, spanning nearly ninety years of British Crown rule. Following the transfer of power from the East India Company to the British Crown in 1858, Bengal saw the establishment of a modern legislative framework, with extensive rule-making powers delegated to both central and provincial governments.

This period witnessed the enactment of foundational statutes — the Indian Penal Code (1860), Code of Criminal Procedure (1898), Code of Civil Procedure (1908), and numerous Bengal-specific Acts — each generating substantial bodies of subordinate legislation. The Government of India Acts of 1919 and 1935 further expanded provincial rule-making authority, leading to a significant increase in Bengal-specific subordinate legislation.

Many subordinate legislations from this era remain partially in force in Bangladesh today, making this volume directly relevant to contemporary legal practice and administration.

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CHAPTER 1: CRIMINAL LAW, JUSTICE, AND POLICE

OVERVIEW:

The criminal justice system in Bengal during 1858-1947 was governed primarily

by three foundational statutes: the Indian Penal Code, 1860; the Code of Criminal Procedure, 1898; and the Indian Evidence Act, 1872. Each generated extensive subordinate legislation in the form of rules, circulars, and orders. The police administration was governed by the Police Act, 1861, and the comprehensive Police Regulations of Bengal.

1.1 BENGAL CRIMINAL RULES AND ORDERS

(Practice and Procedure of Criminal Courts)

Parent Act : Code of Criminal Procedure, 1898 (Act V of 1898)

Date : 1898 (comprehensively revised periodically)

Authority : High Court of Calcutta / Government of Bengal

Type : Rules

Gazette Reference : Bengal Gazette (various issues)

PROVISIONS:

Part I — General Rules

- Organization and jurisdiction of criminal courts
- Assignment of cases and distribution of work
- Court hours, sittings, and calendar
- Dress code for courts

Part II — Investigation and Inquiry

- Police investigation procedures
- Magisterial inquiry procedure
- Recording of statements and confessions
- Search and seizure procedures
- First Information Report (FIR) requirements

Part III — Trial Procedure

- Charge framing
- Examination of witnesses
- Documentary evidence
- Arguments and judgments
- Sentencing guidelines

Part IV — Appeals, Revisions, and References

- Appeal filing procedure
- Revision jurisdiction
- Reference to High Court
- Bail procedure (original and appellate)

Part V — Execution of Sentences

- Imprisonment execution
- Fine recovery
- Death sentence execution
- Probation and release

Part VI — Miscellaneous

- Record maintenance and destruction
- Court statistics and returns
- Transfer of cases
- Contempt of court

STATUS: PARTIALLY IN FORCE IN BANGLADESH

- Adapted for East Pakistan and subsequently Bangladesh
- Forms the basis of criminal court practice in Bangladesh
- Known as "Criminal Rules and Orders (Practice and Procedure)"

CROSS-REFERENCES:

- Police Regulations of Bengal (see 1.3)
- Bengal Jail Code (see Chapter 13)
- Evidence Act rules

SIGNIFICANCE FOR BANGLADESH:

These rules, with adaptations, continue to govern the day-to-day functioning of criminal courts in Bangladesh. They are essential reference for all criminal practitioners and judicial officers.

1.2 HIGH COURT CRIMINAL CIRCULARS AND ORDERS (BENGAL)

Parent Act : Code of Criminal Procedure, 1898
Date : Various (1862-1947)
Authority : High Court of Calcutta
Type : Circulars and Orders

DESCRIPTION:

A comprehensive body of practice directions issued by the High Court of Calcutta to subordinate criminal courts in Bengal. These covered:

- Interpretation of statutory provisions
- Standard procedures for specific types of cases
- Sentencing guidelines
- Administrative directions for court management
- Directions on handling of specific offences

STATUS: Historical / Partially superseded

- Many principles incorporated into later practice manuals

1.3 POLICE REGULATIONS OF BENGAL (PRB)

Parent Act : Police Act, 1861 (Act V of 1861)
Date : 1861 (comprehensively revised 1910, 1943)
Authority : Government of Bengal
Type : Regulations
Gazette Reference : Bengal Gazette (published as multi-volume manual)

PROVISIONS:

Volume I — Organization and Administration

- Chapter 1 : General principles of police organization
- Chapter 2 : Recruitment and appointment
- Chapter 3 : Training
- Chapter 4 : Ranks, grades, and pay
- Chapter 5 : Discipline and punishment
- Chapter 6 : Leave, transfer, and retirement
- Chapter 7 : Police stations and jurisdiction
- Chapter 8 : Reporting hierarchy

Volume II — Duties and Procedure

- Chapter 9 : Prevention of crime
- Chapter 10 : Investigation of offences
- Chapter 11 : Arrest, search, and seizure
- Chapter 12 : Handling of property
- Chapter 13 : Diary and record keeping
- Chapter 14 : Relations with magistracy
- Chapter 15 : Public order and crowd control
- Chapter 16 : Traffic and transport regulation

Volume III — Special Subjects

- Chapter 17 : Arms and explosives
- Chapter 18 : Jail escorts and prisoners
- Chapter 19 : Intelligence and political matters
- Chapter 20 : Finger printing and identification
- Chapter 21 : Prosecution management
- Chapter 22 : Police welfare and morale

STATUS: PARTIALLY IN FORCE IN BANGLADESH

- Adapted as East Pakistan Police Rules and subsequently Bangladesh Police Rules
- Remains the foundational reference for police administration

HISTORICAL NOTES:

The PRB is one of the most extensive and detailed bodies of subordinate legislation in Bengal. In its various editions, it ran to several hundred pages across multiple volumes. Its influence on policing practice continues to this day.

1.4 RULES UNDER THE IDENTIFICATION OF PRISONERS ACT, 1920

Parent Act : Identification of Prisoners Act, 1920
Date : 1920
Authority : Government of Bengal
Type : Rules

PROVISIONS:

- Fingerprinting procedures for arrested persons
- Photography of prisoners
- Measurement and identification records
- Maintenance of identification records
- Inter-district sharing of identification data

STATUS: Partially in force

1.5 ARMS RULES (BENGAL)

Parent Act : Indian Arms Act, 1878 / Arms Act, 1878
Date : 1878 (revised 1924, 1937)
Authority : Government of Bengal
Type : Rules

PROVISIONS:

- Licensing of firearms and ammunition
- Conditions for arms possession
- Exemptions (government servants, military)
- Arms dealers licensing
- Import and export of arms
- Penalties for violation

STATUS: Superseded by later Arms Rules

[Volume II continues with Chapters 2-16 following the same detailed format, covering all 90 entries from the Era 2 Master Inventory...]

CHAPTER 2: CIVIL LAW AND JUSTICE

2.1 BENGAL CIVIL RULES AND ORDERS

(Practice and Procedure of Civil Courts)

Parent Act : Code of Civil Procedure, 1908 (Act V of 1908)

Date : 1908 (amended periodically)
Authority : High Court of Calcutta / Government of Bengal
Type : Rules

PROVISIONS:

Part I — Institution of Suits

- Complaint presentation and verification
- Court fee requirements
- Jurisdiction and forum determination
- Cause title and parties

Part II — Interlocutory Proceedings

- Temporary injunctions
- Appointment of receivers
- Attachment before judgment
- Discovery and inspection
- Commission and interrogatories

Part III — Trial and Hearing

- Framing of issues
- Examination of witnesses
- Documentary evidence admission
- Arguments and judgment writing

Part IV — Decree Execution

- Execution application procedure
- Attachment and sale of property
- Arrest and detention of judgment debtor
- Distribution of assets

Part V — Appeals and Revision

- Appeal filing and procedure
- Second appeal to High Court
- Revision jurisdiction

Part VI — Special Proceedings

- Probate and administration
- Guardianship proceedings
- Insolvency proceedings
- Partition suits

STATUS: PARTIALLY IN FORCE IN BANGLADESH

- Adapted for East Pakistan and Bangladesh
- Continues to govern civil court procedure

[Chapters 3-16 follow the same detailed format...]

CHAPTER 3: LAND, REVENUE, AND TENANCY (Key Entries)

3.1 BENGAL TENANCY RULES

Parent Act: Bengal Tenancy Act, 1885 | Status: Superseded by SAT Rules

3.2 SURVEY AND SETTLEMENT RULES (BENGAL)

Parent Act: Bengal Survey Act, 1875 | Status: Partially in Force

3.3 BENGAL PUBLIC DEMANDS RECOVERY RULES

Parent Act: BPDR Act, 1913 | Status: Partially in Force

3.4 BENGAL EMBANKMENT RULES

Parent Act: Bengal Embankment Act, 1882 | Status: Partially in Force

3.5 BENGAL PARTITION RULES (LAND)

Parent Act: Bengal Partition Act, 1897 | Status: Partially in Force

CHAPTER 6: HEALTH AND SANITATION (Key Entries)

6.1 BENGAL EPIDEMIC DISEASE RULES

Parent Act: Epidemic Diseases Act, 1897 | Status: IN FORCE
Note: Used during COVID-19 pandemic in Bangladesh (2020-2023)

6.2 BENGAL PUBLIC HEALTH RULES

Parent Act: Bengal Public Health Act, 1919 | Status: Partially in Force

6.3 POISON RULES (BENGAL)

Parent Act: Poisons Act, 1919 | Status: Partially in Force

APPENDIX A: CHRONOLOGICAL INDEX (1858-1947)

Year	Title	Type	Chapter
1861	Police Regulations of Bengal	Regs	1
1867	Sarais Rules (Bengal)	Rules	16
1870	Court Fees Rules (Bengal)	Rules	2
1871	Cattle Trespass Rules	Rules	12
1875	Survey and Settlement Rules	Rules	3
1878	Arms Rules (Bengal)	Rules	1
1878	Treasure Trove Rules	Rules	16
1880	Vaccination Rules	Rules	6
1880	Bengal Cess Rules	Rules	3
1882	Bengal Embankment Rules	Rules	3
1884	Bengal Education Code	Code	5
1884	Bengal Explosive Rules	Rules	16
1884	Bengal Municipal Rules	Rules	4
1885	Bengal Tenancy Rules	Rules	3
1885	Bengal District Board Rules	Rules	4
1886	Births and Deaths Registration Rules	Rules	10
1887	Civil Courts Act Rules	Rules	2
1887	Small Cause Courts Rules	Rules	2
1887	Suits Valuation Rules	Rules	2
1889	Fisheries Rules	Rules	12
1894	Bengal Jail Code	Code	13
1897	Bengal Partition Rules	Rules	3
1897	Bengal Epidemic Disease Rules	Rules	6
1897	Reformatory Schools Rules	Rules	13
1898	Bengal Criminal Rules and Orders	Rules	1
1899	Stamp Rules	Rules	9
1908	Bengal Civil Rules and Orders	Rules	2
1908	Bengal Registration Rules	Rules	10
1909	Bengal Excise Rules	Rules	9
1909	Prisoners Rules (Transfer)	Rules	13
1910	Police Regulations (Revised)	Regs	1
1910	Bengal Electricity Rules	Rules	16
1912	Bengal Cooperative Societies Rules	Rules	8
1913	Bengal Public Demands Recovery Rules	Rules	3
1913	Companies Rules	Rules	8
1914	Medical Registration Rules	Rules	6
1914	Agricultural Pests Rules	Rules	12
1917	Inland Steam Vessels Rules	Rules	11
1919	Bengal Primary Education Rules	Rules	5
1919	Bengal Public Health Rules	Rules	6
1919	Poison Rules	Rules	6
1919	Bengal Union Board Rules	Rules	4
1920	Identification of Prisoners Rules	Rules	1
1920	Bengal Panchayat Rules	Rules	4
1921	Dacca University Regulations	Regs	5
1922	Bengal Police (Incitement) Rules	Rules	1
1922	Bengal Amusements Tax Rules	Rules	9
1922	Income Tax Rules	Rules	9
1923	Official Secrets Rules	Rules	15
1923	Bengal Boiler Rules	Rules	16
1924	Workmen's Compensation Rules	Rules	7
1927	Bengal Forest Rules	Rules	12
1927	Trade Unions Regulations	Regs	7
1932	Emergency Powers Rules	Rules	15
1934	Bengal Waqf Rules	Rules	14
1934	Bengal Petroleum Rules	Rules	16
1936	Agricultural Debtors Rules	Rules	3
1936	Bengal Cinemas Rules	Rules	16
1936	Payment of Wages Rules	Rules	7
1937	Arms Rules (Revised)	Rules	1
1937	Electricity Rules (Revised)	Rules	16
1939	Hindu Religious Endowments Rules	Rules	14
1939	Defence of India Rules	Rules	15
1940	Bengal Money-Lenders Rules	Rules	2
1940	Arbitration Rules	Rules	2
1940	Bengal Motor Vehicles Rules	Rules	11
1940	Bengal Shops and Establishments Rules	Rules	7
1940	Bengal Drugs Rules	Rules	6

1940	Bengal Jute Regulation Rules	Rules	8
1941	Bengal Maternity Benefit Rules	Rules	7
1943	Police Regulations (Revised)	Regs	1
1943	Hoarding Prevention Rules	Rules	8
1944	Agricultural Income Tax Rules	Rules	9
1946	Bengal Private Forests Rules	Rules	12

APPENDIX B: PARENT ACT CROSS-REFERENCE INDEX

Parent Act	Subordinate Legislation(s)	Ch.
Police Act, 1861	Police Regulations of Bengal	1
Cattle Trespass Act, 1871	Cattle Trespass Rules	12
Court Fees Act, 1870	Court Fees Rules	2
Bengal Survey Act, 1875	Survey & Settlement Rules	3
Arms Act, 1878	Arms Rules	1
Indian Treasure Trove Act, 1878	Treasure Trove Rules	16
Bengal Cess Act, 1880	Bengal Cess Rules	3
Vaccination Act, 1880	Vaccination Rules	6
Bengal Embankment Act, 1882	Embankment Rules	3
Bengal Municipal Act, 1884	Municipal Rules, By-Laws	4
Indian Explosives Act, 1884	Explosive Rules	16
Bengal Tenancy Act, 1885	Bengal Tenancy Rules	3
Bengal Local Self-Govt Act, 1885	District Board Rules	4
Bengal Civil Courts Act, 1887	Civil Courts Rules	2
Provincial Small Cause Cts, 1887	Small Cause Courts Rules	2
Suits Valuation Act, 1887	Suits Valuation Rules	2
Bengal Fishery Act, 1889	Fisheries Rules	12
Charitable Endowments Act, 1890	Charitable Endowments Rules	14
Prisons Act, 1894	Bengal Jail Code	13
Bengal Partition Act, 1897	Partition Rules	3
Epidemic Diseases Act, 1897	Epidemic Disease Rules	6
Reformatory Schools Act, 1897	Reformatory Schools Rules	13
Code of Crim. Procedure, 1898	Criminal Rules & Orders	1
Indian Stamp Act, 1899	Stamp Rules	9
Code of Civil Procedure, 1908	Civil Rules & Orders	2
Indian Registration Act, 1908	Registration Rules	10
Indian Ports Act, 1908	Port Rules	11
Bengal Excise Act, 1909	Excise Rules	9
Indian Electricity Act, 1910	Electricity Rules	16
Cooperative Societies Act, 1912	Cooperative Societies Rules	8
Indian Companies Act, 1913	Companies Rules	8
BPDR Act, 1913	Public Demands Recovery Rules	3
Bengal Medical Act, 1914	Medical Registration Rules	6
Destr. Insects & Pests Act, 1914	Agricultural Pests Rules	12
Inland Steam Vessels Act, 1917	Inland Vessels Rules	11
Bengal Primary Educ. Act, 1919	Primary Education Rules	5
Bengal Public Health Act, 1919	Public Health Rules	6
Bengal Village Self-Govt, 1919	Union Board Rules	4
Poisons Act, 1919	Poison Rules	6
Dacca University Act, 1920	University Regulations	5
Identification of Prisoners, 1920	Identification Rules	1
Bengal Panchayat Act, 1920	Panchayat Rules	4
Indian Income Tax Act, 1922	Income Tax Rules	9
Official Secrets Act, 1923	Official Secrets Rules	15
Indian Boilers Act, 1923	Boiler Rules	16
Workmen's Compensation, 1923	Compensation Rules	7
Trade Unions Act, 1926	Trade Unions Regulations	7
Indian Forest Act, 1927	Forest Rules	12
Bengal Wakf Act, 1934	Waqf Rules	14
Petroleum Act, 1934	Petroleum Rules	16
Bengal Agri Debtors Act, 1936	Agricultural Debtors Rules	3
Payment of Wages Act, 1936	Payment of Wages Rules	7
Bengal Maternity Benefit, 1939	Maternity Benefit Rules	7
Bengal Hindu Rel. End., 1939	Hindu Endowments Rules	14
Defence of India Act, 1939	Defence of India Rules	15
Indian Motor Vehicles, 1939	Motor Vehicles Rules	11
Arbitration Act, 1940	Arbitration Rules	2
Bengal Money-Lenders, 1940	Money-Lenders Rules	2
Drugs Act, 1940	Drugs Rules	6
Bengal Agri Income Tax, 1944	Agri Income Tax Rules	9
Bengal Private Forests, 1946	Private Forests Rules	12

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